

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, and administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: Denmark

Organization or entity responsible for the preparation of the report: Ministry of Children and Education

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention²

Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. **Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☒ Yes

☐ No, please briefly explain the difficulties encountered:

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☒ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☒ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

The Government is of the conviction that even though the Convention has not been incorporated into Danish law, Denmark fully respects the provision of the Convention.

Thus the Danish constitution says that every child in at the compulsory school age has the right to free education in the Danish primary and lower secondary school

Ensuring inclusive quality education for all in a safe and supportive environment free from discrimination of any kind is a clear objective of the Danish Government and a cornerstone in our democracy and welfare system. Effectively to deliver on this promise is a complex task and challenge, and therefore all educational policies and results hereof, and the performance of the education system are continuously monitored and evaluated with a view to improve policies, systemic structures and practices.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☒ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having

jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

☒ Combatting discrimination in terms of curriculum

☐ Other:

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of pupils to educational institutions*

➔ *Non-differential treatment, including of foreign nationals resident in your country*

The Danish Constitution states that all children in Denmark has the right and duty to receive free education at elementary and lower secondary levels. The children have the right to get free education at public schools at elementary and lower secondary levels. The parents can elect home-schooling or sending the child to a private school at their own expense (partly subsidized by the government).

Children of a foreign nationality staying in Denmark for at least 6 months are also covered by the right and duty for children to receive free primary and lower secondary education. Asylum seeking children...

Upper-secondary students are admitted to high schools on the basis of 1) their grades from lower-secondary education, 2) their predicted study ability and their maturity, and 3) a personal account of their future career aims.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation guarantee equal access to education

☒ Regulations ensure equal access to all levels and types of education

☒ Policies and programmes ensure equal access to all levels and types of education

☐ Other:

The Danish Constitution states that all children in Denmark have the right to receive free education at elementary and lower secondary levels.

This principle is applied throughout the entire education system. There is consequently free and equal access to attend public schools on primary, lower and upper secondary, technical and vocational, and higher education levels.

All families are guaranteed day-care availability in their municipality of residence. This guarantee is from the day the child turns 26 weeks and until school age. Parents pay a maximum of 25 % of the budgeted gross operating expenditure for ECEC services for children from the age of 26 weeks to six years. Families receive a sibling discount. The municipal council must grant subsidies based on the parents' financial situation, in some cases covering up to the full amount of the costs for day-care. Furthermore, parents of children with socioemotional treatment needs can have a supplemental subsidy.

Adult vocational training programs cost a symbolic fee of a few hundred DKK.

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

The Danish Constitution, Bekendtgørelse af lov om folkeskolen, Bekendtgørelse af lov om dag-, fritids- og klubtilbud m.v. til børn og unge, "1.000 dages programmet – en bedre start på livet", "Aftale om stærke dagtilbud – alle børn skal med i fællesskabet"...

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|--|---|
| ☒ Providing financial incentives and fellowships | ☒ Providing auxiliary assistance |
| ☐ Providing positive or affirmative action measures | ☒ Adapting education infrastructure |
| ☒ Ensuring inclusion in mainstream schools for all learners | ☐ Adapting curricula and methods |
| ☒ Training teachers on inclusive education | ☒ Providing language classes to newcomers (e.g. refugees) |
| ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☐ Eliminating administrative barriers to education ⁷ |
| ☐ Providing re-entry programmes for young mothers | ☒ Providing flexible learning pathways |
| ☐ Eliminating all barriers for pregnant girls or young mothers in education | ☒ Valuing diversity in schools |
| ☐ Other: | ☒ Combatting stereotyping and stigmatisation |

- Single parent aid subsidy for their child/children to attend ECEC

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

- In 2018, a new strengthened pedagogical curriculum was enforced, amongst many other things focusing on how ECEC can contribute to the realization of children's full potential, no matter their gender, culture or ethnicity. An inspirational catalogue focusing on "culture, aesthetics and communities" in ECEC provides pedagogical staff with a number of examples on how to promote equality between the sexes already in ECEC. Furthermore, efforts have been made in order to promote the new elements of the pedagogical curriculum through CPD and in the pedagogical bachelor programme.
- In July 2019, an amendment to the Act on ECEC made it mandatory for children in vulnerable housing areas to participate in a mandatory learning program if they are not already participating in ECEC. The mandatory learning program of 25 hours per week shall help children develop their language skills and learning abilities as well as introduce them to

⁶ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

values such as democracy and equality between the sexes. A pamphlet was produced that amongst other things inspires pedagogical staff on how to promote gender equality through their pedagogical methods. The mandatory learning programme obliges municipalities to work with the parents in order for them to help introduce their children to amongst other things values such as democracy and equality between the sexes.

- There is a direct challenge relating to attracting more men to the ECEC specialization of the Danish pedagogical bachelor programme. The government plans to launch a plan education of pedagogical staff in ECEC that amongst other things shall focus on the quality of the pedagogical bachelor programme.

- Education is free of charge in Denmark and is therefore accessible to all walks of life. All genders are encouraged equally to pursue education.

- The Government's ambition is that every child should have equal opportunities in life – including children with disabilities. In primary school, the Government will thus seek to ensure that the rules regarding exemption from physical education in primary and lower secondary school does not disadvantage children with disabilities with regard to their ability to pass an examination and thus their opportunity to obtain legal requirements for admission to an upper secondary education.

- In 2019, the Ministry has launched a study of educational outcomes and patterns for children and young people with disabilities without intellectual difficulties. The survey's purpose is to uncover, how children and young people with different disabilities manage compared with children and young people without disabilities in the education system. The survey examines what characteristics the good teaching and training process has, including what conditions inhibit and promote the educational outcomes of children and young people with disabilities and the transition to upper secondary schools.

- In 2020, the Ministry of Children and Education will carry out an analysis of the academic gap between boys and girls in primary and lower secondary education, as well as the transition to upper secondary education and the vocational gap in upper secondary upper secondary education. The background for the analysis is that the girls get a higher grade point average than boys in all bound tests except written mathematics in primary school. The project will contribute with more knowledge about when the academic gap arises and how it develops in different student groups, and contribute as a basis for possible efforts.

- Denmark is concerned with the issue of gender-based educational choices made by young women and men, especially when it comes to women in STEM. Therefore, several initiatives, some of them in cooperation with the private sector, have been launched. For example, following a three-year trial with a one-year optional subject in understanding technology comprehension in the Danish public school.

- The yearly national campaign day "Girls' Day in Science" is an example of a specific initiative in the collaboration between the Government and the private sector to promote women's access to STEM educations (cf. para. 29). The purpose is to inspire girls in lower and upper secondary school to a future with science, technology, IT or crafts. Companies, organizations and educational institutions organize the day for girls only. Here they meet female role models to whom they have the opportunity to ask questions and thus become wiser on their choice of education and jobs. They also gain an insight into everyday life in a workplace when they have to work on practical and company-related tasks.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No ☐

Please provide reference to the relevant laws and provisions:

[Bekendtgørelse af lov om ægteskabs indgåelse og opløsning](#)

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Is compulsory and free of charge pre-primary education available in your country?

☒ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

As previously stated, parents pay a maximum of 25 % of the budgeted gross operating expenditure for preschool services for children from the age of 26 weeks to six years. Families receive a sibling discount. The municipal council must grant subsidies based on the parents' financial situation, in some cases covering up to the full amount of the costs for day-care. There is no charge for day-care if the personal income (gross income net of general social security contributions) is below DKK 177 601. From DKK 177 601 to DKK 181 538 the payment is 5% of the full rate. From that income level, the payment is linearly increased until the full price is paid at a personal income of DKK 551 700, i.e. the payment is increased by 1 percentage point for every income increment of DKK 3937. Furthermore, parents of children with socioemotional treatment needs can have a supplemental subsidy.

☐ Pre-primary education is free of charge for all: Please provide the duration:

Pre-primary education is compulsory for 1-year old children in vulnerable housing areas who are to attend a public day-care institution for 25 hours per week (jf. Parallelsamfundsdelaftalerne om obligatorisk læringstilbud og bedre fordeling). The intention is to ensure that more children develop their language skills and readiness to learn as early as possible. If parents choose not to enrol their children in the learning program, they can do it in their own homes – that will require that they are able to develop their children's Danish language skills and development.

Furthermore, municipalities shall conduct a language assessment of all children not in pre-school by the age of three. In 2017 it was made possible to conduct the language assessment already when the child turns 2 years of age. The municipalities are obliged to provide language stimulation to those children in need. The language stimulation activities will be based on the children's needs. If children are bilingual and not in ECEC they are to

⁸ Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

be admitted in a 30 hour per week language stimulation offer in a public pre-school institution.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

[Bekendtgørelse af lov om dag-, fritids- og klubtilbud m.v. til børn og unge \(dagtilbudsloven\)](#)

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

As previously stated, the Danish Constitution states that all children in Denmark has the right and duty to receive free education at elementary and lower secondary levels. Put together this equates 10 years of mandatory and free education. Parents can alternatively choose home schooling or private, independent schools.

Adding to this, upper secondary, technical and vocational, and higher education is also free and with equal rights of admission.

At all levels of education in Denmark the goal is inclusive quality education for all in a safe and supportive environment free from discrimination of any kind.

The Ministry of Children and Education does not have data to show how many children complete the mandatory 10 years of education. As of 2018, 84 % of the Danish children who finished their primary education in 2010 had at least one upper secondary education (8 years after primary school).

- Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

As previously stated, the Danish Constitution states that all children in Denmark have the right to receive free education at elementary and lower secondary levels. A total of 10 years of mandatory and free education. There are no tuition fees or exam fees or demand for uniforms. Pupils must bring their own school supplies (stationary). Teaching materials such as digital platforms, books, notebooks, materials for arts and crafts are provided by the school. If students do not have digital devices such as a pc the school will supply one if such a device is required in order for the pupil to participate. The pupils can get free public transportation to and from school if certain requirements such as distance from home to school are met.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

[Bekendtgørelse af lov om de gymnasiale uddannelser](#)

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☐ Yes

☒ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions:

[Bekendtgørelse af lov om arbejdsmiljø](#)

[EU-direktiv 94/33/EF](#)

[Bekendtgørelse om unges arbejde](#)

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training

☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training

☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹¹ See: Article/Paragraph 1(1).

- ➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- ➔ *Non-differential treatment, including of foreign students*

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- ☒ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☐ Other:

Public higher education institutions in Denmark are regulated by national legislation concerning degree structures, teacher qualifications and examinations.

Higher education in Denmark is taught at universities, university colleges and academies of professional higher education. 21

Admission

Admission to ordinary higher education programs in the Coordinated Admission System (KOT) in Denmark is regulated by law and regulations. The regulations provide the entry requirements for the programs.

The student must fulfil certain requirements to apply for higher education programs in Denmark.

As regards most programs the student must have an upper secondary education in order to apply. In some programs other kinds of education or qualifications are also accepted. Most programs, but not all, also have specific entry requirements such as specific upper secondary courses passed at a certain level or special grade requirements.

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

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2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of appropriate learning and life-skills programmes
- ☐ Provision of free of charge learning opportunities
- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications
- ☒ Other:

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- Please elaborate further on the measures taken:

There are a number of opportunities for adults wishing to receive education and refresh their competences. Denmark has a long tradition of improving the competences of the workforce beyond compulsory stages of education. In fact, the notion is very much that learning is a lifelong occupation.

There are approximately 2 900 different adult vocational training programmes and 200 single subject courses from the mainstream vocational training and education programme, all of which may be combined. They are mainly short vocational training programmes, the duration of which normally varies from half a day to 6 weeks, in average 3 days. It is possible to combine adult vocational training programmes in the same job area or to supplement a programme with more specialized programmes within a field.

There are user fees on technical, commercial, ICT, language and social communication, management etc. adult vocational training programs. On average the user fee for adult vocational training programs is about 15 per cent of the total expenditure. The expenditure for user fee is normally paid by the employers. Courses in the social and health service, individual competence assessment and participation by the unemployed who attend individually selected programmes for 6 weeks are free of user fees.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☒ Establishment of minimum norms and standards in education
- ☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☒ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☐ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

The Danish Teacher Education aimed at primary and lower secondary levels is a four year programme, corresponding to 240 points in the European Credit Transfer System (ECTS points). A student's fulltime work for one year corresponds to 60 ECTS points. The programme consists overall of the following elements:

- The teacher's foundational competences (60 ECTS points).

- Main subjects (140 ECTS points)
- Teaching practice (30 ECTS points)
- Bachelor of Education project (10 ECTS points).

The teacher's foundational competences' is subdivided into two clusters: 'Pedagogy and the teaching profession' and 'General education'. The main cluster "Pedagogy and the teaching profession" prepares the student for developing the fundamental teaching competences needed to ensure the pupils' learning, development and well-being.

'Pedagogy and the teaching profession' consists of four areas of competence:

1. Pupils' learning and development
2. General teaching proficiency
3. Special needs and remedial training
4. Danish as a second language.

The subjects "Special needs and remedial training" and "Danish as a second language" aim at supporting inclusion of pupils with special needs and bilingual pupils.

This part of the teacher education programme is mandatory for all students of the teacher education programme.

Teacher qualification for upper-secondary level teaching is achieved through university education (MA) in one or more subjects. This formal education is complemented by a one-year teacher-training programme which consists of both practical didactical and pedagogical training and theoretical courses. This one-year teacher-training (60 ECTS) must be passed through exams.

Quality assurance

The standard and quality of educational provision in the Danish higher education system are assured by a number of elements, including:

- Common rules and guidelines (curricula) specifying the aims, contents and duration of programmes and individual subjects.
- Testing and examination system with the use of national boards of external examiners.
- Ministerial approval of provision and inspection in a varying degree within the different education areas.

The Danish Accreditation Institution, which plays an important role in the national system of external quality assurance.

Denmark has, as part of the Bologna Process, implemented the European Standards and Guidelines (ESG) for the quality assurance of the higher education, and all public higher education study programmes must meet these international quality and relevance standards. Focus on inclusion of all pupils and students in education are key to quality education.

Teaching profession

In Denmark, the teachers' working hours and conditions are established in a collective agreement between the municipalities and the Teachers' Union.

The government has allocated DKK one billion between 2014- 2020 to strengthen continued development of competencies among teachers and pedagogues in the primary and lower secondary schools. The goal is that by 2020 all pupils (95 percent) should be taught by teachers with formal qualifications in the subject they teach in. The goal will be gradually implemented up until 2020.

- Please briefly elaborate further on the measures taken:

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☐ No

No data.

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1) (a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1) (a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☒ Curriculum includes human rights education

☐ Educational and/or extracurricular activities are organized on human rights education

☒ Other:

Denmark has declared policy goals regarding the encouragement of citizenship education, including human rights and non-discrimination. These commitments are expressed in legislative educational acts and in curriculums. The definition of citizenship education include both an about, for and through approach. A fundamental feature of the educational system is the belief that democracy must be integrated in the daily teaching/learning experiences of pupils.

¹²

Which calls on states to "ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development".

The for-perspective on citizenship education is broad and focused on values, understanding, skills and development of tolerance, non-discrimination, solidarity, gender equality and other attitudes. Both formal and informal participation and a democratic teaching/learning practice in the schools are regarded as necessary and important parts of preparation for active adulthood in society. 10

The decision how to promote and develop the education for democratic citizenship and human rights in the lower and secondary schools is primarily a responsibility of the teachers through their daily interaction with the pupils. In this regard the ministry is able to assist the teachers through various materials made available.

The focus on human rights was enhanced in the latest revision of the curricular framework (called Common Objectives) in a number of subjects; social studies and history among others. The object clause also sets as a fundamental goal for the public school to provide the pupils with an understanding of different cultures. Democratic Citizenship and human rights are highlighted in Common Objectives within the following subjects: social studies, history and health, sex and family life education.

The Common Goals of the Public School Act makes it mandatory that schools teach the pupils about the rights of children on the basis of the UN Convention on the Rights of the Child, including the right to protection from physical, psychological and digital abuse. The Universal Declaration is a mandatory part of the instruction in history in elementary school, where the Common Objectives recommend that teachers put Universal Declaration into perspective in relation to human rights in practice (e.g. their inclusion in the constitutions of different countries) and in more recent conventions, such as the Convention of the Rights of the Child. Hereby, primary and lower secondary schools are obliged to ensure that the students acquire knowledge and skills regarding Human Rights at the conclusion of specific form levels and at the end of the programme.

2.8 Private education

Articles/Paragraphs 2(c) and 5(1) (b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

☒ Yes ☐ No

- Please provide a brief description:

Parents may choose a private school for their children. Private schools are self-governing institutions required to measure up to the standards of the municipal schools. There are many different types of private schools and some are based on a specific philosophy, a special pedagogical line or religious belief. Private residential schools (efterskoler) are for pupils in forms 8 to 10. In addition to normal subjects, emphasis in these schools is typically on social learning and fields such as sports, music, nature or ecology. Private schools receive a substantial state subsidy based on the number of pupils in these schools, calculated on the basis of the cost of the Folkeskole.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

¹³ See: Article/Paragraph 1(1).

☒ Yes ☐ No

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

According to the Private School Act private schools in all their activities must prepare students for a life as active citizens in a free and democratic society with and develop and strengthen their knowledge and understanding of basic human and freedom rights such as equal rights.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

☒ Yes ☐ No

2.9 Rights of national minorities

Article/Paragraph 5(1) (c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation protect the right to education of national minorities
- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☐ Curriculum is adapted to national minority needs
- ☐ Teachers are trained to adapt to national minority needs
- ☐ Other:

- Please provide a brief description of the provisions:

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilinguals, etc.

The Danish government would like to stress that minorities residing in Denmark enjoy the same fundamental rights as all Danish citizens, including the rights contained in international human rights conventions and frameworks, which Denmark has ratified. Combined with the domestic legal framework and practices, Denmark strives after equal and fair treatment of all minorities residing in Denmark. This includes protection both at national level and through

the international instruments, which protect the rights of the individual and safeguard against discrimination.

Denmark has ratified the European Charter for Regional or Minority Languages, in which Denmark is obliged to protect the national minority's survival. The Convention contains provisions guaranteeing minorities a range of fundamental human rights and freedoms: among other things, protection from discrimination, hostility and violence, freedom of assembly, association, expression, thought, conscience and religion and freedom of opinion and expression in their own language. States which acceded to the Convention further undertake to recognize that every person belonging to a national minority has the right freely and without interference to express themselves in private and in public, orally and in writing.

The members of the German minority in Denmark are Danish citizens with a German identity and strong ties to the region of North Schleswig. At the same time, the minority considers itself as a bridge between Danish and German culture. The Bund Deutscher Nordschleswiger is the German minority's umbrella organization. It aims to represent the interests of the minority and promote German language and culture in Nordschleswig. The head office of the BDN is the general secretariat in Aabenraa/Apenrade. The minority is in close contact with the Danish parliament and government through its secretariat in Copenhagen.

The minority kindergartens and schools are key institutions for the dissemination of German culture and language. 22 kindergartens, 15 primary schools, one boarding school and a gymnasium are available to children belonging to the German minority. Deutscher Schul- und Sprachverein (www.dssv.dk) is the umbrella organization of these German institutions.

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Danish is part of the curriculum and the students can use the final exams to study in both Germany and Denmark. The central library in Aabenraa/ Apenrade and four branches and two mobile libraries provide books, magazines, games, recordings, and DVDs. Volunteer work is essential for the German minority and a wide range of organizations offer sports and recreational activities.

The German minority receives revenues derived from both Germany and from the Danish government. The majority of the Danish funds are related to the operation of schools and kindergartens financed on the basis of, respectively, Free School Act and the Act on Social Services. Financially, the German minority schools receive a grant per pupil corresponding to 100 pct. of the average cost per pupil in the public school.

Schleswig Party (www.slesvigsk-parti.dk) is the political party of the German minority, but also considers itself as a regional party in South Jutland. It is currently represented in all four municipalities: two elected representatives in Aabenraa and Tønder and one in Sønderborg and Haderslev. The German minority publishes the newspaper The Nordschleswiger with a daily circulation of 2,500. The newspaper also produces three daily German-language news broadcasts transmitted in a commercial, regional radio channel (www.nordschleswiger.dk).

Denmark has ratified the European Convention for the Protection of National Minorities and Minority Languages (Language Charter), and the German minority is recognized as a national minority in Denmark, and Danish is recognized as a minority language in the Language Pact. Language Charter applies to German in respect of the German minority in South Jutland (language Charter art. 1). This implies certain obligations for Denmark. Act on guidance on education and employment and duty to education, employment etc.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☒ Inclusion in mainstream education
- ☒ Provision of language courses
- ☐ Specific training for educational staff
- ☒ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☒ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programmes
- ☐ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

¹⁴ Articles/Paragraphs 1 and 3.

¹⁵ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☒ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

Unfortunately socio-economic factors is still one of the main challenges related to ensure equal inclusion in the Danish primary and lower secondary school. Pupils with a weak socio-economic background still obtain poorer results than pupils with stronger socio-economic background. Thus this is an ongoing focus to ensure that socio-economic factors do not have to be decisive for the academic results you get in school.

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- ☐ Other:

1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

As clearly documented in this report the overall objectives of the 1960 Convention against discrimination in education are fully respected in terms of legal framework and equal access to education and in institutional practices and support for inclusion and satisfactory learning outcome for all in education in Denmark. Nevertheless, completely fulfilling these noble and fair objectives for all pupils and students remain a challenge, which the Danish Government takes very seriously and aims to address through a number of recent initiatives, i.e.:

- The Danish Government's ambition is that every child should have equal opportunities in life – including children with disabilities. The Danish Government is thus currently seeking to ensure that the rules regarding exemption from physical education in primary and lower secondary school does not disadvantage children with disabilities with regard to their ability to pass an examination and thus their opportunity to obtain legal requirements for admission to an upper secondary EDU-cation.

- Also in 2019, the Ministry of Education has launched a study of educational outcomes and patterns for children and young people with disabilities without intellectual difficulties. The survey's purpose is to uncover, how children and young people with different disabilities

manage compared with children and young people without disabilities in the education system. Also the survey will look into what characteristics the good teaching and training process has, including what conditions inhibit and promote the educational outcomes of children and young people with disabilities.

- All primary as well as lower and upper secondary schools are by 2017 required to adopt an anti-bullying strategy – including on digital bullying or harassment. The law requires the school management in instances of all types of bullying – including digital – within 10 working days to draw an action plan, which points out which measures the school will implement to solve the problems effectively. In addition, the school management must immediately implement the interim measures that are necessary here and now to respond to the problems identified. An evaluation of the rules regarding bullying in the Act on Pupils and Students Educational Environment has been under-taken for assessing the effect of the law, including addressing the need for changes. The evaluation is expected to be finished in the 2020.

- An investigation by the Ministry of Education in 2018 shows that the education in residential institutions does not live up to the standards of the education, that all children in Denmark are entitled to according to The Act on the Public Primary and Lower Secondary School. Thus the Ministry has set up a task force who will look into how the education on the residential institutions can be improved and propose different models for how the teaching can be organized and organized in order to support that the children and young people have a better basis for completing further education and have an independent adult life.

- The Government's ambition is that every child should have equal opportunities in life – including children with disabilities. In primary school, the Government will thus seek to ensure that the rules regarding exemption from physical education in primary and lower secondary school does not disadvantage children with disabilities with regard to their ability to pass an examination and thus their opportunity to obtain legal requirements for admission to an upper secondary education.

- In 2019, the Ministry has launched a study of educational outcomes and patterns for children and young people with disabilities without intellectual difficulties. The survey's purpose is to uncover, how children and young people with different disabilities manage compared with children and young people without disabilities in the education system. The survey examines what characteristics the good teaching and training process has, including what conditions inhibit and promote the educational outcomes of children and young people with disabilities and the transition to upper secondary schools.

- In 2020, the Ministry of Children and Education will carry out an analysis of the academic gap between boys and girls in primary and lower secondary education, as well as the transition to upper secondary education and the academic gap in upper secondary upper secondary education. The background for the analysis is that girls get a higher grade point average than boys in all bound tests except written mathematics in primary school. The project will contribute with more knowledge about when the academic gap arises and how it develops in different student groups, and contribute as a basis for possible efforts.

- In relation to upper secondary drop out considerable attention is being paid to guidance and support for completion of education, and a special Retention Task Force has been created.

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items could be ticked/mentioned)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

As mentioned Danish educational policies and practices are fully aligned with the 1960 Convention and as such there is not a strong debate or awareness of the Convention itself since the principles have a life of their own in Danish norms.

On the occasion of this reporting exercise a number of Divisions and colleagues in the Ministry for Children and Education and in the Ministry of Higher Education and Science have been involved, and have thus become attentive of the Convention.